

26STLC00941 26STLC00941

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-07

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Case Number: 26STLC00941 Hearing Date: July 7, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Tsang Han Wang's (1) Motion for Judgment on the Pleadings; and (2) Demurrer to Answer, are stayed.

The action is stayed until disposition of Defendant Balaciano Group's Motion for Order Requiring Plaintiff to Post Security Pursuant to CCP § 391.1.

Status Conference Re: Stay is scheduled for 10/13/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

On February 11, 2026, Plaintiff Tsang Han Wang ("Plaintiff") filed the Complaint in this action against Defendant Balaciano Group ("Defendant"). The Complaint alleges causes of action for (1) Pre-Employment Retaliation in Violation of FEHA (Government Code § 12940(h)); (2) Pre-Employment Retaliation in Violation of California Labor Code Section 98.6 (Labor Code § 98.6 with SB 497 Rebuttable Presumption); and (3) Ultra Vires Acts Exceeding Corporate Authority.

On

April 6, 2026, Defendant filed its Answer to the Complaint; Plaintiff filed the instant Demurrer to Answer on April 13, 2026. Concurrent with the Demurrer, Plaintiff filed a Motion for Judgment on the Pleadings set to be heard on July 7, 2026. Defendant filed an opposition to the Demurrer on April 30, 2026 and Plaintiff replied on May 4, 2026. Defendant filed an opposition to evidentiary

objections and an objection to Plaintiff's request for judicial notice on May 8, 2026.

The

Demurrer to Answer originally came for hearing on May 13, 2026, at which time the Court continued the matter to July 7, 2026. (Minute Order, 05/13/26.) The Court addressed Defendant's opposition request that Plaintiff be ordered to post security and found it premature. (Ibid.) If Defendant filed a motion for Plaintiff to furnish security, the Court ruled, it would hear and determine that motion before reaching the merits of the Demurrer to Answer and the Motion for Judgment on the Pleadings, or any other pending motions. (Ibid.)

On

June 23, 2026, Defendant filed a Motion for Order Requiring Plaintiff to Post Security Pursuant to CCP § 391.1, which is set for hearing on September 29, 2026. As the Court previously noted, Code of Civil Procedure section 391.6 expressly provides that "when a motion pursuant to Section 391.1 is filed prior to trial the litigation is stayed ... until 10 days after the motion shall have been denied, or if granted, until 10 days after the required security has been furnished and the moving defendant given written notice thereof." (Code Civ. Proc., § 391.6.) Accordingly, the Court stays the instant Motion for Judgment on the Pleadings and Demurrer to Answer, and the litigation as a whole, until disposition of the Motion for Order Requiring Plaintiff to Post Security.

Conclusion

Plaintiff Tsang Han Wang's (1) Motion for Judgment on the Pleadings; and (2) Demurrer to Answer, are stayed.

The action is stayed until disposition of Defendant Balaciano Group's Motion for Order Requiring Plaintiff to Post Security Pursuant to CCP § 391.1.

Status Conference Re: Stay is scheduled for 10/13/2026 at 9:30 am in Department 26 at the Spring Street Courthouse.

Judicial

Assistant to give notice.